



Republic of the Philippines
Province of Surigao del Sur
MUNICIPALITY OF CARMEN

POSTED:
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BY: **MA. JESSICA R. JUTILO**
SR SECRETARY

TANGGAPAN NG SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 39TH REGULAR SESSION OF THE 14TH SANGGUNIANG BAYAN
OF CARMEN, SURIGAO DEL SUR HELD AT THE SB SESSION HALL, LEGISLATIVE BUILDING ON APRIL
28, 2026

PRESENT:

Hon. Jane V. Plaza		Municipal Vice- Mayor/ Presiding Officer
REGULAR SANGGUNIANG BAYAN MEMBERS:		
Hon. Carlos S. Estrada		SB Member
Hon. Harvey S. Manawatao		SB Member
Hon. Tanie A. Quillano		SB Member
Hon. Nilo S. Bigno		SB Member
Hon. Rencio P. Valeroso		SB Member
Hon. Elvie U. Ohao		SB Member
EX-OFFICIO MEMBERS:		
Hon. Blandena V. Sugian		ABC President
Hon. Jeff Anthony D. Beloria		SK Federation President

ON LEAVE:

REGULAR SANGGUNIANG BAYAN MEMBERS:		
Hon. Daniel A. Tejol		SB Member
Hon. Michael C. Escuyos		SB Member

ORDINANCE NO. 49
Series of 2026

**"AN ORDINANCE FOR THE PREVENTION AND CONTROL OF CRIME IN THE MUNICIPALITY OF
CARMEN, SURIGAO DEL SUR"**

Author: Hon. Harvey S. Manawatao
Enacted: All Members Present

EXPLANATORY NOTE

WHEREAS, it is of common knowledge that criminality is one of the major causes of economic
inability due to fear of investors (local and foreign) to invest capital in our country;

WHEREAS, at present the most distinct of all crimes are rape, drug proliferation, robberies and
murder and the perpetrators usually hide in the remote areas in the barangays of distant and
neighboring municipalities;

WHEREAS, if the presence of all transients, sojourners and other persons who maybe temporarily residing to any respective barangays could be properly monitored, then criminal elements who are at large could easily be apprehended and arrested;

WHEREAS, in some other cases criminal elements usually stay for a while in their pinpointed area of operation before they actually push through their premeditated crimes such as robbery, murder, drug proliferation and other similar nature and if their presence is carefully monitored then there is a greater possibility that the crime could be prevented by our law enforcers;

WHEREAS, the government is encouraging concerned citizens to assist the law enforcers in the prevention and suppression of criminal act and to help in the arrest of fugitives and other criminal elements in order to maintain peace and order;

BE IT ORDAINED, by the Sangguniang Bayan of Carmen, Surigao del Sur in Regular Session assembled, that:

SECTION 1. SHORT TITLE- This Ordinance shall be known as the MUNICIPAL PREVENTION AND CONTROL ORDINANCE.

SECTION 2. SCOPE- The provision of this Ordinance require all residents in the Municipality of Carmen, Surigao del Sur to report immediately upon their knowledge to their respective Barangay Officials and/or Barangay Peacekeeping Action Team any unidentified persons sighted in the Barangay, names of persons if identified, description and the names of the actual residence who accommodated them or whom they are living with, for purposes of monitoring the presence of criminal elements for easy apprehension and eventual arrest should it be necessary and for possible prevention of crime that may be committed in their Barangay or Municipality in general.

SECTION 3. DEFINITION OF TERMS- Words and phrases as used in this Ordinance means:

1. **Transient or Sojourner-** are those who temporarily resides with a resident in a barangay, lodging houses, inns, apartments and other dwellings of similar nature usually for a short duration without any known legitimate business or purpose.
2. **Unidentified Person-** any person or persons not known in the barangay who temporarily stay therein for an undetermined period of time.
3. **Perpetrator-** is a person or persons who have committed a crime or crimes elsewhere and who temporarily stay in the barangay for the purpose of evading arrest as well as persons in the Police "wanted list."
4. **Actual Residents-** is a bonafide or registered residents in the barangay.
5. **Prevention-** refers to the proactive strategies and measures aimed at reducing the likelihood of criminal activity and its harmful effect.
6. **Control-** refers to the measures and strategies aimed at preventing or reducing criminal behavior.

SECTION 4. MANNER OF REPORTING- Any resident in the barangay upon his/her knowledge shall immediately report to the Barangay Officials and/or Barangay Peacekeeping Action Team or any persons in authority in the said barangay. Any unidentified person or persons sighted in the barangay, the names of person, if identified the description and the names of the actual residents who accommodated them or with whom they are living through text message, chatting or by calling and other means of communication.

However, in cases where two or more similar reports are presented, the first to submit shall be considered after the truth shall be evaluated. All reports whether written or verbal shall be consolidated by the Punong Barangay and the same shall be submitted immediately to the office of the PNP of the Municipality of Carmen, Surigao del Sur for guidance and appropriate action with the end in view of maintaining peace and order and preventing suppressing and/or reporting the commission of the crime.

SECTION 5. PENAL PROVISION- Any residents in the Barangay who purposely fails to report to the barangay Officials and/or to the Barangay Peacekeeping Action Team or to any persons in authority, the names of the person or persons who are temporarily staying with them in their house or abode whom they know personally to be a wanted criminal and/or harboring and keeping the said fugitive of justice in their keeps shall be indicted in accordance with the Revised Penal Code.

SECTION 6. INCENTIVES- Any resident who have reported the names of person or persons as provided for in Section 4 of this Ordinance who later maybe found out to be a wanted criminal or a fugitive of justice and may cause the latter's eventual arrest and immediate apprehension shall be rewarded a minimum of One Thousand Pesos (Php1,000.00) and not more than Five Thousand Pesos (Php5,000.00) depending upon the ranking from the wanted lists from the allocation to be taken from the Confidential Funds (CF) of the Local Government Unit of Carmen, Surigao del Sur CY 2026 aside from the reward given to other government agencies as the case maybe.

SECTION 7. SUPPLETORY CLAUSE- This Ordinance shall have a suppletory effect to existing laws, rules and regulations.

SECTION 8. APPLICABILITY CLAUSE- The provisions of existing ordinances dealing on the same subject matter which are not in conflict with, or contrary to the provisions of this Ordinances are hereby adopted and made an integral part of this Ordinance.

SECTION 9. REPEALING CLAUSE- All ordinances, rules and regulations, or parts thereof, the provision of which are in conflict with or contrary to the provision of this Ordinance are hereby repealed, amended and modified accordingly.

SECTION 10. EFFECTIVITY CLAUSE- The provision of this ordinance shall take effect thirty (30) days after its posting in at least three (3) conspicuous places in the Municipality of Carmen, Surigao del Sur.

ENACTED this 28th day of April, 2026 at Carmen, Surigao del Sur.

I HEREBY ATTEST to the correctness of the foregoing Ordinance.


MA. JULINA T. BORDA-JUTILO, LLB., J.D.
Secretary to the Sangguniang Bayan

CERTIFIED CORRECT:


JANE V. PLAZA
Municipal Vice- Mayor/
Presiding Officer

APPROVED:


NESTOR S. VALEROSO
Municipal Mayor
5/11/2026